



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8431 (EXTENSION)
FIRST REVISION March 18, 1981

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8431 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

Marilyn L. Morris
for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

November 27, 1996
(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

Dow Chemical Company
Midland, MI

May 27, 1996



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Washington, D.C. 20590

DOT-E 8431
(FIRST REVISION)

1. Dow Chemical Company, Midland, Michigan, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a corrosive liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of monochloroacetic acid solution in DOT specification IIIA100W6 tank car and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Dow Chemical Company's applications dated May 5, 1980 and January 14, 1981, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Monochloroacetic acid solution (80% monochloroacetic acid and 20% water or 80% monochloroacetic acid and 20% methanol) classed as corrosive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Monochloroacetic acid solution.

5. REGULATION AFFECTED. 49 CFR 173.294(a)(2), 179.202-16.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT specification IIIA100W6 insulated tank car fabricated from type 316L stainless steel with weld material equivalent to 316L stainless steel. Bottom outlet and washout are prohibited.

8. SPECIAL PROVISIONS.

a. Approval for use of IIIA100W6 tank car in the service of the subject material must be obtained from the Association of American Railroad's Committee on Tank Cars in accordance with 49 CFR 173.31(a)(4). A copy of the approval must be submitted to the Exemption Branch, Office of Hazardous Materials Regulation prior to the first shipment.

b. Each tank must be subjected to internal inspection once each year.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. November 15, 1982.

Issued at Washington, D.C.:

MAY 18 1981

(DATE)


Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: FRA.